



CHAPTER xc.

An Act to extend the limits of supply and increase A.D. 1928.
the capital of the Wessex Electricity Company —
and for other purposes. [3rd August 1928.]

WHEREAS by the Wessex Electricity Act 1927 (in this Act referred to as "the Act of 1927") the Wessex Electricity Company (in this Act referred to as "the Company") were incorporated and authorised to supply electricity in the area defined in that Act for the purposes to the extent and subject to the conditions stated in that Act and to exercise other powers :

And whereas the capital of the Company authorised by the Act of 1927 is £750,000 and the Company have issued 131,750 ordinary shares of £1 each of which 40,000 shares are fully paid up 90,000 shares are paid up as to 10s. per share and the remaining 1,750 shares are paid up as to 2s. per share :

And whereas the provision of a supply of electricity in the further area defined in this Act would be of public and local advantage and the Company are willing to construct works for the purposes of and to afford such supply and it is expedient that the area of supply of the Company under the Act of 1927 be extended to include such further area :

And whereas it is expedient that the capital of the Company authorised by the Act of 1927 be increased and that further powers be conferred on the Company as in this Act mentioned and that the other provisions of this Act be enacted :

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And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1.—(1) This Act may be cited as the *Wessex Electricity Act 1928*.

(2) The *Wessex Electricity Act 1927* and this Act may together be cited as the *Wessex Electricity Acts 1927 and 1928*.

Interpreta-
tion.

2. In this Act the several words terms and expressions to which by the Act of 1927 or the principal Acts (as defined in the Act of 1927) meanings are assigned shall have the same respective meanings unless there is something in the subject or context repugnant to such construction And unless the context otherwise requires :—

“ The existing area ” means the area defined in section 40 (Area of supply) of the Act of 1927 ;

“ The new area ” means the area defined in subsection (2) of section 3 of this Act ;

“ The area of supply ” means the existing area and the new area.

Extension of
area of
supply.

3.—(1) The area within which the Company may supply electricity and exercise the powers of the Act of 1927 shall extend to and include (in addition to the existing area) the new area defined in subsection (2) hereof and (except as otherwise provided in the next following section of this Act) all the provisions of the Act of 1927 shall be read and have effect as if the expression “ the area of supply ” wherever used in that Act meant the area of supply as defined in this Act.

(2) The new area above referred to is—

In the administrative county of Dorset—

The boroughs of Dorchester and Shaftesbury ;

The urban district of Sherborne ;

The rural districts of Cerne Shaftesbury Sherborne and Sturminster ;

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The parishes of Cheddington Corscombe East Chelborough Evershot Halstock Hooke Melbury Osmond Melbury Sampford Rampisham West Chelborough and Wraxall in the rural district of Beaminster;

The parishes of Askerswell Chilcombe Litton Cheney Puncknowle and Swyre in the rural district of Bridport;

The parishes of Athelhampton Bradford Peverell Burleston Charminster Chilfrome Compton Abbas Compton Valence Dewlish Frampton Frome Vauchurch Kingston Russell Long Bredy Maiden Newton Piddlehinton Puddletown Stinsford Stratton Tincleton Toller Fratrum Toller Porcorum Tolpuddle and Wynford Eagle in the rural district of Dorchester;

The parishes of Chettle Farnham Iwerne Courtney and Tarrant Gunville in the rural district of Blandford and so much of the parishes of Tarrant Hinton Tarrant Launceston Tarrant Monkton Tarrant Rawston and Tarrant Rushton in the same rural district as lies to the north-east of a straight line drawn from the intersection of the boundary of the parish of Pimperne with the road from Pimperne to Tarrant Hinton to the junction in the river Allen of the boundaries of the parishes of Witchampton Hinton Martell and Pamphill in the rural district of Wimborne and Cranborne;

The parishes of Alderholt Chalbury Cranborne East Woodyates Edmondsham Gussage All Saints Gussage St. Michael Handley Hinton Martell Hinton Parva Holt Horton Long Critchel More Critchel Pentridge Verwood West Woodyates Wimborne St. Giles and Woodlands in the rural district of Wimborne and Cranborne and so much of the parish of Witchampton in the same rural district as lies to the north-east of the straight line aforesaid.

In the administrative county of Gloucester—

So much of the rural district of Faringdon as is situate in the county.

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—

In the administrative county of Somerset—

The borough of Yeovil;

The urban district of Frome;

The rural district of Wincanton;

The rural district of Frome except the parishes of Babington Foxcote Kilmersdon Leigh upon Mendip Mells and Writhlington;

The parishes of Batcombe Lamyatt Milton Clevedon and Upton Noble in the rural district of Shepton Mallet;

The parishes of Ashington Barwick Chilthorne Domer Chilton Cantelo Ilchester Limington Marston Magna Mudford Northover Podimore Priston Plucknett Rimpton Sock Dennis West Camel Yeovilton and Yeovil Without in the rural district of Yeovil; and

So much of the parishes of Freshford and Hinton Charterhouse in the rural district of Bath as lies beyond the distance of three miles from the Guildhall Bath.

In the administrative county of Southampton—

The boroughs of Lymington and Romsey;

The rural districts of Fordingbridge Hursley New Forest Ringwood Romsey and Stockbridge;

The rural district of Lymington except the parish of Milford and so much of the parish of Hordle as lies to the west of Avonwater;

The parishes of Crawley Lainston Sparsholt and Wonston in the rural district of Winchester and so much of the parishes of Headbourne Worthy and Littleton in the same rural district as lies beyond the distance of two miles from the City Cross Winchester.

In the administrative county of Wilts—

The city of New Sarum;

The borough of Wilton; and

The rural districts of Mere Tisbury Wilton and Salisbury.

The Company shall within two months after the passing of this Act deposit at the office of the Electricity

Commissioners an Ordnance map on a scale of not less than one inch to the mile showing the new area and the map shall be signed by the secretary to the Electricity Commissioners. A.D. 1928.
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4. In the application of the provisions of the Act of 1927 to and within the new area those provisions shall notwithstanding anything in this Act have effect subject to the following modifications :— As to appli-
cation of
Act of 1927
in new area.

- (1) In the undermentioned sections of the Act of 1927 the expression “ the passing of this Act ” wherever used in any of those sections shall with respect to the new area mean the passing of this Act and not of the Act of 1927 The sections above referred to are—

Section 46 (Principal powers of supply);

Section 47 (Limitation on powers of supply);

Section 70 (Acquisition of generating stations &c. by agreement) :

- (2) No application shall be made under section 57 (Revision of prices) of the Act of 1927 for an alteration of the rates or methods of charge for the supply of electricity by the Company in the new area until after the expiration of three years from the passing of this Act :

- (3) Section 75 (For protection of road authorities) of the Act of 1927 shall have effect within the new area as if the administrative counties of Dorset and Somerset were named therein in addition to the administrative counties of Berks Bucks Gloucester Oxford Southampton and Wilts :

- (4) Section 51 (Proposals for development of supply) section 79 (For protection of applicants for future Special Orders) and section 86 (Cesser of powers) of the Act of 1927 shall not extend to or be in force within the new area and the expression “ the area of supply ” in those sections shall continue to mean the existing area but in lieu of those sections the provisions of section 5 (Proposals for development in new area) section 7 (For protection of applicants for

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future Special Orders) and section 14 (Cesser of powers in new area) of this Act shall apply within the new area.

Proposals
for develop-
ment in new
area.

5.—(1) In this section the expression “the prescribed date” means with respect to any such scheme as is in this section mentioned the date or respective dates on which the Central Electricity Board shall under the provisions of section 4 (Preparation and carrying out of scheme) of the Electricity (Supply) Act 1926 have adopted as respects any area or any part of any area comprised within the new area a scheme or schemes within the meaning of that section providing for the construction laying down or acquisition of main transmission lines required in accordance with any such scheme.

(2) The Company may at any time and shall within six months after the prescribed date and at such subsequent times at intervals of not less than three years as they may be required to do so by the Electricity Commissioners submit to the commissioners proposals for the development of the supply of electricity for lighting and general domestic purposes (including office purposes) including in such proposals the provision of any necessary transmission lines or other means of ensuring that a supply of electricity will be available for the purpose of such development in those parts of the new area which are comprised within the area to which any such scheme as is referred to in subsection (1) of this section relates and where—

- (a) there is a demand for a supply of electricity for those purposes; and
- (b) there is a reasonable prospect of such a supply being remunerative; and
- (c) there are no authorised distributors empowered to provide a supply for those purposes.

(3) The Company shall when submitting any proposals to the commissioners under subsection (2) of this section serve a copy thereof on every local authority whose district or any part of whose district is situate in the area to which the proposals relate and any such local authority shall be entitled to make to the commissioners representations on the proposals within thirty days from such service.

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(4) Any proposals submitted by the Company under subsection (2) of this section shall (subject as hereinafter provided) be subject to such modifications or additions as the commissioners may require and after considering such proposals and any representations of any such local authority the commissioners may by order declare that the area specified in the order (being an area which in the opinion of the commissioners complies with the conditions (a) and (b) specified in subsection (2) of this section) shall be an area in which the Company shall within such period as the commissioners may determine lay down distributing mains in the streets specified therein and be subject to all the obligations of the schedule to the Electric Lighting (Clauses) Act 1899 except sections 4 (3) 23 31 to 33 63 to 68 78 83 and 84 of that schedule and the provisions of the said schedule (except as aforesaid) shall be deemed to be incorporated with and form part of the order as if the order were a Special Order made under section 26 of the Electricity (Supply) Act 1919.

For the purposes of such incorporation the following expressions where used in the said provisions shall have the following respective meanings (namely):—

“The undertakers” shall mean the Company;

“The Special Order” shall mean the said order of the commissioners;

“The area of supply” shall mean the area named in the order;

“The commencement of the Special Order” shall mean such date as may be prescribed by the commissioners in the order;

“General supply” shall mean a general supply for lighting and general domestic purposes (including office purposes);

“A supply of energy” and any like expression shall mean a supply of electricity for lighting and general domestic purposes (including office purposes).

(5) The provisions of section 54 (Limitation on demand for maximum power) and of section 88 (Inspectors) of the Act of 1927 shall not (notwithstanding anything in this Act) apply to a supply of electricity for lighting and general domestic purposes (including office

A.D. 1928. — purposes) in the area specified in any order made by the commissioners under subsection (4) of this section or to any mains used exclusively for the purpose of giving such a supply.

(6) If the Company make default in laying down any distributing mains in accordance with the provisions of any order made by the commissioners under subsection (4) of this section they shall be liable for each default to a penalty not exceeding five pounds for each day during which the default continues and if the Minister is of opinion in any case that the default is wilful and unreasonably prolonged he may after considering any representations of the local authority concerned revoke the powers of the Company to supply electricity for lighting and general domestic purposes (including office purposes) in the area specified in the order or any part thereof.

(7) On the first occasion on which the Company submit to the commissioners after the prescribed date proposals under subsection (2) of this section the Company shall also submit to the commissioners for their information a general statement of their scheme—

(a) for the development of the supply of electricity in those parts of the new area in which the Company are empowered to supply electricity for all purposes without the consent of any authorised distributors; and

(b) for the laying or erection of transmission lines in the new area;

and the commissioners may call upon the Company to modify that scheme in such manner as to secure a comprehensive development of the supply throughout the new area.

For protec-
tion of
applicants
for pending
Special
Orders.

6. If any of the under-mentioned Special Orders shall not have been approved by Parliament before the passing of this Act but shall be approved by Parliament before the first day of January nineteen hundred and thirty then the undertakers for the purposes of such order shall be deemed to have been authorised distributors at the date of the passing of this Act within the area of supply defined in the Order as so approved.

The Special Orders above referred to are—

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Hythe (Hants) Electricity Special Order 1928;

New Sarum Electricity (Extension) Special Order 1928;

Tisbury Electricity Special Order 1928;

Wilton and District Electricity Special Order 1928.

7.—(1) If—

For protec-
tion of
applicants
for future
Special
Orders.

(a) any local authority company or person shall at any time after the passing of this Act apply for a Special Order under the principal Acts to authorise them to supply electricity within any area situate in the new area or to extend the limits of such applicants for the supply of electricity so as to include any area in the new area; and

(b) the applicants are the local authority or a combination of the local authorities for the area or the application is made with the consent of the local authority or local authorities for the area or the consent of the local authority or local authorities for the area is dispensed with by the Electricity Commissioners; and

(c) the Company are not at the date of the application under obligation to carry into effect proposals approved by the Electricity Commissioners under section 5 (Proposals for development in new area) of this Act for the development of the supply of electricity in the area or do not within two months after receipt of notice of the application submit proposals to the commissioners under the said section for the development of the supply of electricity in the area and such proposals are approved by the commissioners with or without modification;

the Company shall not be entitled to oppose the application except so far as may be necessary in order to secure the insertion in the Special Order of clauses or amendments for the protection of their electric lines and works in the area and for requiring the applicants to acquire from the Company on such terms as may be agreed or failing

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agreement determined by arbitration under section 28 of the Electric Lighting Act 1882 any works or apparatus of the Company in the area other than works and apparatus used for the supply of electricity (i) in bulk to any authorised distributors and (ii) for the purposes (a) (b) and (c) mentioned or referred to in subsection (3) of section 46 (Principal powers of supply) of the Act of 1927 and provision may be made in the Special Order for the acquisition by such local authority company or person of such works and apparatus.

(2) Except so far as the Special Order may otherwise direct as from the taking over of such works and apparatus (if any) other than as aforesaid or if there be no such works or apparatus to be taken over then as from the coming into operation of the Special Order all powers of the Company to supply electricity within or for use within the area of supply under the Special Order shall cease save as regards the power of the Company to supply electricity (i) in bulk to the authorised distributors for the purposes of the Special Order and (ii) for the purposes (a) (b) and (c) mentioned in subsection (3) of the said section 46.

For protec-
tion of
Ringwood
Electric
Supply
Company
Limited.

8. Notwithstanding anything in the Act of 1927 or this Act the Company shall not without the consent of the authorised distributors for the time being for the purposes of the Ringwood Electricity Special Order 1924 supply electricity within or for use within the area of supply defined in that Order except (i) in bulk to the authorised distributors and (ii) for the purposes (a) (b) and (c) mentioned or referred to in subsection (3) of section 46 (Principal powers of supply) of the Act of 1927.

For protec-
tion of
Power De-
velopment
Company
Limited
and West
Hampshire
Electricity
Company
Limited.

9. Notwithstanding anything in this Act the Company shall not without the consent of the respective authorised distributors for the time being for the purposes of—

- (a) the West Hants Electricity Special Order 1928 ;
- (b) any Special Order which shall be made by the Electricity Commissioners confirmed by the Minister and approved by Parliament on the application of the Power Development Company Limited in the month of February nineteen

hundred and twenty-eight under the title of A.D. 1928.
“the West Hants Electricity (No. 2) Special
Order 1928”; or —

- (c) any Special Order which shall be made by the Electricity Commissioners confirmed by the Minister and approved by Parliament on any application of the Power Development Company Limited or the West Hampshire Electricity Company Limited made before the passing of this Act in respect of the parishes of Downton Morgans Vale and Woodfalls Redlynch White-parish Landford and No-man's Land in the rural district of Salisbury in the county of Wilts and the parishes of Fordingbridge Breamore North Charford South Charford Hale Woodgreen and Ashley Walk in the rural district of Fordingbridge in the county of Southampton;

supply electricity within or for use within the areas of supply defined in those Orders respectively except (i) in bulk to the authorised distributors and (ii) for the purposes (a) (b) and (c) mentioned or referred to in subsection (3) of section 46 (Principal powers of supply) of the Act of 1927.

10. Notwithstanding anything in this Act the Company shall not without the consent of the authorised distributors for the time being for the purposes of any Special Order which shall be made by the Electricity Commissioners confirmed by the Minister and approved by Parliament on any application of the Southern Tanning Company (1920) Limited made before the passing of this Act in respect of the parishes of Downton Morgans Vale and Woodfalls and Redlynch in the rural district of Salisbury in the county of Wilts supply electricity within or for use within the area of supply defined in that Order except (i) in bulk to the authorised distributors and (ii) for the purposes (a) (b) and (c) mentioned or referred to in subsection (3) of section 46 (Principal powers of supply) of the Act of 1927.

For protec-
tion of
Southern
Tanning
Company
(1920)
Limited.

11. The Company shall lay down or place before the first day of January nineteen hundred and thirty-one suitable and sufficient distributing mains for the purposes of a general supply of electricity in the

For protec-
tion of
Shaftesbury
Corporation.

A.D. 1928. following streets and roads in the borough of Shaftesbury
(viz.) :—

High Street Salisbury Street Old Boundary Road
Bell Street Gold Hill St. James' Street Bleke
Street Bimport Street and New Road.

For protec-
tion of
Shaftesbury
Rural
District
Council.

12. The Company shall lay down or place before the first day of January nineteen hundred and thirty-one suitable and sufficient distributing mains for the purposes of a general supply of electricity in the following roads and portions of roads in the parish of Gillingham in the rural district of Shaftesbury (viz.) :—

High Street from New Road to The Square The
Square Wyke Road from The Square to Wyke
Brewery Queen Street from High Street to
Lodbourn Corner Station Road and New Road
from High Street for a distance of three hundred
yards.

For protec-
tion of
Central
Electricity
Board.

13.—(1) Notwithstanding anything in the Act of 1927 or in this Act or the principal Acts the Central Electricity Board may supply electricity directly to any authorised undertakers.

(2) Notwithstanding anything in this Act the Company shall not without the consent of the Central Electricity Board supply electricity for the purposes of distribution to any local authority company or person authorised to distribute electricity within any part of the new area.

Cesser of
powers in
new area.

14. At any time after the expiration of ten years from the date on which the main transmission lines referred to in subsection (1) of section 5 (Proposals for development in new area) of this Act shall have become available and suitable for use within the new area the Minister may by order direct that all or any of the powers of the Company within the new area under this Act shall cease as regards any part of the new area (being a part which complies with the condition (c) specified in subsection (2) of the said section and also in the opinion of the commissioners with the conditions (a) and (b) specified in that subsection) in which the Company shall not at the date of such order be affording for all purposes or be prepared to afford for all purposes (in each case to the

satisfaction of the Minister) an adequate supply of electricity and on any such order being made such powers shall cease accordingly. A.D. 1928.
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15.—(1) The Company may for the purpose of giving or taking a supply of electricity in bulk to or from any authorised undertakers outside the area of supply or of bringing electricity into the area of supply from any generating station outside that area or of transmitting electricity from one part of the area of supply to another part enter upon and break up any streets and roads in the area mentioned in subsection (3) hereof and lay down place or erect electric lines and other works in under over along and across any such streets and roads. Power to
lay mains
outside area
of supply.

(2) The Company shall in respect of the said streets roads electric lines and works have the same rights and be subject to the same obligations and liabilities (other than rights and obligations in regard to the supply of electricity) as they would have and be subject to if the said streets roads electric lines and works were situate within the area of supply and the said streets or roads were broken up for the purpose of supplying electricity in that area and section 75 (For protection of road authorities) of the Act of 1927 shall apply to the exercise by the Company of the powers of this section and to any electric lines or works laid down placed or erected under those powers within the area mentioned in subsection (3) hereof as though the expression "the council" in that section included the council of every borough or urban or rural district situate wholly or partly within that area and the county council of the administrative county of Dorset.

(3) The area within which the powers of this section may be exercised shall be—

the boroughs of Blandford Forum Wareham and Weymouth and Melcombe Regis;

the urban districts of Swanage and Wimborne Minster;

the rural districts of Poole Wareham and Purbeck and Weymouth; and

so much of the rural districts of Blandford Dorchester and Wimborne and Cranborne as is not within the area of supply;

all in the county of Dorset.

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Additional
share and
loan capital.

16.—(1) The capital of the Company authorised by section 8 (Capital) of the Act of 1927 is hereby increased to one million two hundred thousand pounds and all the provisions of Part II (Financial provisions) of the Act of 1927 shall have effect as if the words “one million two hundred thousand pounds” were inserted in the said section 8 in lieu of the words “seven hundred and fifty thousand pounds.”

(2) Section 14 (Company may incur temporary loans) of the Act of 1927 is hereby amended by the substitution of the words “four hundred thousand pounds” at the end of the section for the words “two hundred and fifty thousand pounds.”

Interest out
of capital.

17. The powers conferred on the Company by section 19 (Payment of interest out of capital) and section 20 (Interest out of capital on borrowed money) of the Act of 1927 of paying out of capital moneys or charging to capital account interest on any shares or stock or borrowed money shall as regards any shares stock debenture stock mortgages debentures or temporary loans issued granted or incurred for the purpose of raising money for the construction of works or the development of the supply of electricity within the new area continue in force (notwithstanding anything in the said sections) until the expiration of five years from the passing of this Act.

Closing of
transfer
books.

18. Section 33 (Closing of transfer books) of the Act of 1927 shall have effect as if the word “payment” were substituted for the word “declaration” in both places where the latter word occurs.

Amendment
of section 69
of Act of
1927.

19. Section 69 (Transfer of undertakings of other undertakers to Company) of the Act of 1927 shall be read and have effect as if the words “prior to the year nineteen hundred and twenty-nine” were inserted therein in lieu of the words “prior to the passing of this Act.”

Amendment
of section 86
of Act of
1927.

20. Section 86 (Cesser of powers) of the Act of 1927 shall be read and have effect as if the words “in bulk and” were inserted therein after the words “supply of electricity.”

21. Where a separate transformer is provided at the expense of the Company for the purpose of affording a supply of electricity to any consumer the Company may use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided.

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As to use of
trans-
formers.

22. Nothing in this Act shall be deemed to include within the area of supply any area which under the provisions of section 80 (For protection of Swindon Corporation) of the Act of 1927 has or shall become excluded from the existing area.

Saving
operation of
section 80 of
Act of 1927.

23. The Amesbury Electric Light and General Supply Company Limited the undertakers for the purposes of the Amesbury Electricity Special Order 1928 shall be deemed to have been authorised distributors at the date of the passing of the Act of 1927 within the parish of Amesbury in the rural district of Amesbury in the county of Wilts.

For protec-
tion of
Amesbury
Electric
Light and
General
Supply
Company
Limited.

24. For the protection of the verderers of the New Forest as constituted by the New Forest Act 1877 (in this section called "the verderers") and of the commoners thereof the following provisions shall apply and have effect:—

For protec-
tion of
Verderers of
New Forest
and of
commoners
thereof.

- (1) The verderers shall be deemed to represent the commoners of the New Forest for the purposes of this Act and to constitute a committee of such commoners:
- (2) The Minister before giving his consent to the placing by the Company of any electric line above ground along any road situate in the New Forest shall give the verderers an opportunity of being heard and may attach to his consent such terms and conditions (if any) for the protection of the verderers and the said commoners as he may think fit:
- (3) If the surface of any open lands of the New Forest over which rights of common exist are disturbed by the Company in exercise of the powers of this Act or of the principal Acts such surface shall be restored by and at the expense of the

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Company and the Company shall not in exercise of the said powers extinguish the said rights of common :

- (4) The verderers shall in respect of any application made by the Company to the Minister under section 22 of the Electricity (Supply) Act 1919 affecting any open lands of the New Forest over which rights of common exist be deemed to be occupiers of such lands but nothing herein shall prejudice or affect the rights of any owner or occupier of any of the said lands :
- (5) Except as by this Act otherwise provided nothing in this Act shall prejudice or affect any rights powers or privileges of the verderers under the New Forest Act 1877 and any compensation acknowledgment rent or similar payment received from the Company by the verderers acting as such committee as aforesaid pursuant to the terms and conditions of any consent of the Minister under section 22 of the Electricity (Supply) Act 1919 or of the verderers shall be applicable by them to and for the purposes and in the manner to for and in which the same would be applicable by them if it were money coming to their hands under or by virtue of the said Act of 1877.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

25. The Company shall not under the powers of this Act construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and

restore the site thereof to its former condition at the cost and charge of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

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26.—(1) Where any work constructed by the Company under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

Abatement
of work
abandoned
or decayed.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Company they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

27. Nothing in this Act shall extend to authorise the Company to take use enter upon or interfere with any land soil or water or take away diminish alter prejudice or affect any property rights profits privileges powers or authorities belonging to or enjoyed by His Majesty in right of the Duchy of Cornwall or to or by the Duke of Cornwall for the time being without (in the

Saving
rights of
Duchy of
Cornwall.

A.D. 1928. — case of land soil water property rights profits privileges or authorities belonging to or enjoyed by His Majesty in right of the said duchy) the consent in writing of some two or more of such of the regular officers of the said duchy or of such other persons as may be duly authorised under the provisions of the Duchy of Cornwall Management Act 1863 section 39 to exercise all or any of the rights powers privileges and authorities by the said Act made exerciseable or otherwise for the time being exerciseable in relation to the said duchy or (in the case of land soil water property rights profits privileges or authorities belonging to or enjoyed by the Duke of Cornwall for the time being) the consent of such Duke testified in writing under the seal of the Duchy of Cornwall first had and obtained for that purpose.

Crown
rights.

28. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of Act.

29. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

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FOR

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